

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 11-12
Authorization for the Sale of the
Washington Square Apartment Complex and Building
to the Pickens District Community Organization

- WHEREAS,** in accordance with Article VII, Section 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and
- WHEREAS,** in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and
- WHEREAS,** the Chickasaw Nation recognizes that the Pickens District Community Organization is a foreign corporation within the boundaries of the Chickasaw Nation and holds its Charter by authority of the Sac and Fox Nation, and
- WHEREAS,** the Governor is proposing a conveyance by Deed of real property owned by the Chickasaw Nation and more particularly described as follows: Part of lot 9, Block 304, City of Ardmore, Oklahoma, described as follows: Beginning at a point 14 feet South of the NE Corner of said lot 9, thence West parallel to the North line of lot 10 a distance of 90 feet to a point in the North line of lot 9; thence Westerly along the North line of said lot 9 to the NW Corner thereof; thence South along the West lot line a distance of 34.4 feet; thence Easterly to a point on the East lot line of lot 9 which is 64 feet South of the NE Corner; thence Northerly distance of 50 feet to the point of beginning, Carter County, Oklahoma, upon execution of a Contract for the Sale of Real Estate with the Pickens District Community Organization, P.O. Box 5592, Ardmore, Oklahoma, and,
- WHEREAS,** the Contract for the Sale of Real Estate shall be subject to the following Covenants:
1. Pickens District shall execute a Contract for the Sale of Real Estate which incorporates these Covenants.
 2. Pickens District Community Organization shall cite their authority to execute said contract in the Contract for the Sale of Real Estate.
 3. Consideration shall be \$1.00.

4. The real estate shall be used for the purpose of operation of an apartment complex and services to the community, and in compliance with any and all laws, ordinances, and orders in regulation of such operations.

5. Title to the real property shall revert to the Chickasaw Nation in the event of abandonment, attempt to transfer to other parties, destruction or attempted destruction of the property or failure to comply with any or all of the provisions of Covenant Number 4, above, and upon proper legal action of the Chickasaw Nation.

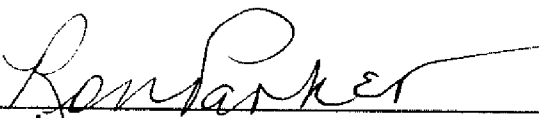
6. The conveyance by Deed shall contain Covenant Numbers 2, 4, and 5.

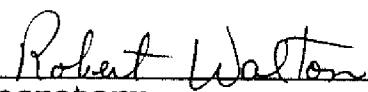
WHEREAS, the Pickens District Community Organization shall agree to execute said Contract for the Sale of Real Estate and accepts said conveyance by Deed as containing said Covenants as stated herein.

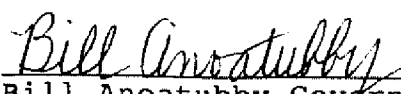
NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature authorizes and approves the proposed Conveyance by Deed to the Pickens District Community Organization, the real property otherwise known as the Washington Square Apartments and as described, and subject to the Covenants stated herein, authorizes the Governor of the Chickasaw Nation to prepare and execute the contract and deed.

BE IT FURTHER RESOLVED, that, in accordance with Section 7 (d) of Tribal Law 11-002, this property is hereby exempted from the provisions of Section 7 (d) of Tribal Law 11-002, regarding placing of land into Trust status with the United States of America.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on March 3, 1994, by a vote of 10 ayes, 0 nays, and 2 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: _____

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Explanation: The Governor is proposing a sale of real property owned by the Chickasaw Nation, in favor of Pickens District Community Organization, Ardmore, Oklahoma. The sale will be for the consideration of \$1.00 and the contract and Deed shall provide for restricted use and reversion to the Chickasaw Nation in the form of specific covenants to be contained in such documents.

The Pickens District Community Organization shall agree to restrictive covenants which shall be contained in the Contract for the Sale of Real Estate and the Conveyance by Deed.

Presented by: Mr. Jack Wells, Chairman
Land Development Committee